

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MOBILE MANOR, LIMITED,
LLLP d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

v.

CASE NO.: 2015 CC 1274

MARLIN YODER and
ANY UNKNOWN TENANT(s)

Defendant(s).

**MOTION TO STAY PROCEEDINGS PENDING RESOLUTION OF PREVIOUS CASE,
AND PAYMENT OF COSTS AND FEES OF PREVIOUSLY FILED ACTION**

COMES NOW, the Defendant, MARLIN YODER (YODER), by and through undersigned counsel and herby files this Motion to Stay the Current Proceeding Pending a Complete Resolution, Payment of Costs, and Payment of Attorney's Fees, of the Previously Filed Action, and as grounds would state as follows:

1. The Plaintiff, COLONIAL MOBILE MANOR, LLP (hereinafter "COLONIAL") brought a previous action against YODER, alleging the same general claims, on September 5, 2014 in Manatee County, to wit: Case No. 2014 CC 3435.
2. On February 2, 2015, the Honorable Douglas Henderson entered a Final Judgment for YODER, reserving jurisdiction for costs and fees. On March 10, 2015, the Order on Yoder's Motion for Fees and Costs was entered.
3. Said fees and costs awarded by the Court have yet to be paid by Plaintiff.
4. On March 19, 2015, YODER filed his Motion for Reconsideration or Modification of the Award for Attorney's Fees, and a hearing time on said motion has yet to be set.

5. As the previous case involving the same parties and facts, has yet to be concluded it is respectfully requested that the current proceedings be stayed until such time Case No. 2014 CC 3435 has been closed, COLONIAL satisfies the Judgment entered by the court, and the parties stipulate to the stay being lifted or further ordered by the court.

WHEREFORE, YODER respectfully request a stay of the current proceedings until Case No. 2014 CC 3435 has concluded, payment of the Judgment against COLONIAL is satisfied, and the Court further Orders the stay lifted.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished via email to William C. Price III, Esq., 522 12th Street West, Bradenton, FL 34205, weprice@wepriceiiiipa.com, this 10 of April, 2015.

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